IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.104

I.A 205/ND/2023

IN THE MATTER OF:

ANURAG DEALCOM PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 1

AND

GANGADHAM AGENCIES PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 2

AND

LAVENDER SUPPLIERS PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 3

AND

SWARNSATHI DISTRIBUTORS PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 4

WITH

SIPS UTILITIES PRIVATE LIMITED

....TRANSFEREE COMPANY/ APPLICANT COMPANY NO. 5

SECTION
U/s 230 - 232

Order pronounced on 25.07.2023

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets.

I.A 205 (ND) 2023 stands ***allowed***.

SD/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

SD/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH

COURT-III

I.A. NO. 205/ND/2023

IN

COMPANY PETITION NO. CP (CAA)-31(ND)/2020

ANURAG DEALCOM PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 1

AND

GANGADHAM AGENCIES PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 2

AND

LAVENDER SUPPLIERS PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 3

AND

SWARNSATHI DISTRIBUTORS PRIVATE LIMITED

....TRANSFEROR COMPANY/ APPLICANT COMPANY NO. 4

WITH

SIPS UTILITIES PRIVATE LIMITED

....TRANSFEREE COMPANY/ APPLICANT COMPANY NO. 5

ORDER DELIVERED ON: 25.07.2023

In Section: 230 to 232 of the Companies Act, 2013.

CORAM:

SH. BACHU VENKAT BALARAM DAS

HON'BLE MEMBER (JUDICIAL)

SH. ATUL CHATURVEDI

HON'BLE MEMBER (TECHNICAL)

O R D E R

PER: ATUL CHATURVEDI, MEMBER (T)

1. The present I.A-205(ND)2023 is being filed on behalf of the Amalgamated Company for rectification of the order dated 09.05.2023 passed by this Hon'ble Tribunal in Company Petition No. CP(CAA) - 31/ND/2020 seeking reliefs as follows:

a) Allow the present application and amend Para 6 (on Page 4) of the Sanction Order to reflect the correct name of the Transferee Company as SIPS UTILITIES PRIVATE LIMITED (earlier known as Primeline Sales Private Limited)

2. It is submitted by the Ld. Counsel that this Tribunal in Para – 6 of the Order, has observed as follows:

"That SIPS POWER DISTRIBUTION PRIVATE LIMITED (earlier known as Primeline Sales Private Limited) bearing Corporatel dentity Number (CIN)U40106DL2012PTC231017) and Permanent Account Number (PAN) AARCS010N (hereinafter referred to as "the Transferee Company") was incorporated under the provisions of the Companies Act, 1956 on 3rd February, 2012 as a Private Limited Company in the state of Delhi with the Registrar of Companies, Delhi and Haryana. That the registered office of the Transferor Company is situated at 16-A, 2nd Floor, Najafgarh Road Shivaji Marg Moti Nagar, 110015."

3. It is submitted by the Ld. Counsel that, in the said Order dated 09.05.2023, inadvertently a minor typographical error has crept in in the name of the Transferee Company has been recorded incorrectly as SIPS POWER DISTRIBUTION PRIVATE LIMITED (earlier known as Primeline Sales Private Limited)" instead of "SIPS UTILITIES PRIVATE LIMITED".

4. In view of the submissions made by the Ld. Counsel, the order dated 09.05.2023 is rectified it shall now be read as under: -

That SIPS UTILITIES PRIVATE LIMITED (earlier known as Primeline Sales Private Limited) bearing Corporatel dentity Number (CIN) U40106DL2012PTC231017 and Permanent Account Number (PAN) AARCS010N (hereinafter referred to as "the Transferee Company") was incorporated under the provisions of the Companies Act, 1956 on 3rd February, 2012 as a Private Limited Company in the state of Delhi with the Registrar of Companies, Delhi and Haryana. That the registered office of the Transferor Company is situated at 16-A, 2nd Floor, Najafgarh Road Shivaji Marg Moti Nagar, 110015.

5. I.A No. 205/ND/2023 stands ***allowed.***

SD/-
ATUL CHATURVEDI
MEMBER (T)

SD/-
BACHU VENKAT BALARAM DAS
MEMBER (J)